

**IN THE HIGH COURT OF JUDICATURE AT BOMBAY
COMMERCIAL DIVISION
ORDINARY ORIGINAL CIVIL JURISDICTION**

COMMERCIAL ARBITRATION PETITION NO. _____ OF 2026

(Petition under Section 9 of the Arbitration and Conciliation Act, 1996)

IN THE MATTER OF:

Anita Enterprises Private Limited

A company incorporated under the Companies Act, 2013

Having its registered office at Andheri East, Mumbai 400069 **PETITIONER**

VERSUS

Vikas Constructions LLP

A Limited Liability Partnership

Having its principal office at Bandra Kurla Complex, Mumbai 400051 **RESPONDENT**

SYNOPSIS

The present Petition is filed under Section 9 of the Arbitration and Conciliation Act, 1996 seeking interim measures of protection pending the constitution of an arbitral tribunal pursuant to the arbitration clause contained in the Joint Development Agreement dated 12.04.2023 executed between the Petitioner and the Respondent.

The Respondent has, in breach of the said Agreement and in a clear attempt to frustrate the contractual arrangement, initiated a criminal complaint against the directors of the Petitioner alleging cheating and criminal breach of trust, when in fact the subject matter of the dispute is purely contractual and commercial in nature. The Respondent has further refused to produce the electronic records of communications between the parties, which consist primarily of WhatsApp messages and email correspondence relevant to the dispute.

FACTS OF THE CASE

1. The Petitioner is a private limited company engaged in the business of real estate investment and development. The Respondent is a limited liability partnership engaged in the business of construction and property development.
2. By a Joint Development Agreement dated 12.04.2023 ("the JDA"), the Petitioner agreed to invest an amount of Rupees Fifteen Crores in a residential project to be developed by the Respondent on land situated at Thane, Maharashtra. The JDA contained an arbitration clause providing for resolution of all disputes by a sole arbitrator appointed in accordance with the Arbitration and Conciliation Act, 1996, with the seat of arbitration at Mumbai.
3. The Petitioner disbursed the full investment amount in three tranches between April and August 2023. The Respondent was obligated to deliver constructed units aggregating to 35,000 square feet of saleable area within 24 months of the final disbursement.
4. The Respondent has failed to commence construction beyond the foundation stage as of January 2026. On repeated inquiries by the Petitioner, the Respondent has given evasive responses and

has ultimately refused to provide any definite timeline.

5. Records of the communications between the parties during the relevant period exist in the form of WhatsApp messages exchanged between the respective directors and email correspondence. These electronic records demonstrate the Respondent's acknowledgment of the delay, its representations regarding imminent commencement that were never fulfilled, and its assurances regarding delivery that have been breached.

6. Anticipating the Petitioner's invocation of arbitration, the Respondent has filed a criminal complaint (FIR No. 567/2025) before the Bandra Police Station alleging cheating and criminal breach of trust against the Petitioner's directors. The said complaint is a tactical device to pressure the Petitioner into accepting unfavourable settlement terms and to avoid the arbitral consequences of its own default.

GROUND FOR RELIEF

A. COMMERCIAL DISPUTE CLOAKED AS CRIMINAL COMPLAINT

The FIR initiated by the Respondent is a textbook instance of a commercial dispute being cloaked as a criminal complaint. The allegations in the FIR do not disclose any ingredient of dishonest inducement at the inception of the transaction as required by Section 420 IPC. The dispute is in substance a question of contractual performance and damages, squarely within the arbitration clause of the JDA. Permitting the criminal proceedings to continue parallel to the arbitration would defeat the contractual forum selected by the parties and constitute an abuse of the process of court.

B. ELECTRONIC EVIDENCE AND SECTION 65B

The WhatsApp messages and email correspondence between the parties are material evidence. The Petitioner has, through its counsel, requested the Respondent to produce authenticated copies of these electronic records along with certificates under Section 65B(4) of the Indian Evidence Act, 1872. The Respondent has refused. The Petitioner apprehends that the Respondent may destroy or alter these records before the constitution of the arbitral tribunal. Interim measures preserving these records are therefore essential to the effective exercise of the arbitral mandate.

C. NECESSITY OF INTERIM PROTECTION

In the absence of interim protection, the Petitioner apprehends that the Respondent will (i) further encumber the project land, (ii) divert the invested funds to other projects or entities, and (iii) destroy or alter the electronic evidence. Each of these actions would render any ultimate arbitral award effectively unenforceable.

D. BALANCE OF CONVENIENCE

The balance of convenience lies firmly in favour of the Petitioner. The Respondent has already received and utilised the Petitioner's investment. Preservation of the status quo and of the electronic records causes no prejudice to the Respondent while protecting the Petitioner from irreparable injury.

PRAYER

In the premises aforesaid, it is most humbly prayed that this Hon'ble Court may be pleased to:

- (a) Direct the Respondent to preserve in their original form all WhatsApp communications and email correspondence exchanged between the parties from April 2023 to the date of the present Petition, and produce authenticated copies thereof together with certificates under Section 65B(4) of the Indian Evidence Act, 1872;
- (b) Restrain the Respondent from creating any third-party interest in the project land bearing Survey No. 123/4 at Thane pending the arbitral proceedings;
- (c) Stay further proceedings in FIR No. 567/2025 registered at Bandra Police Station, pending the disposal of the arbitral reference;
- (d) Pass such other and further order(s) as this Hon'ble Court may deem just and proper in the facts and circumstances of the case.

PLACE: Mumbai

DATE: _____

FOR THE PETITIONER

Advocate